

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 981

Introduced by Urban Affairs Committee: McKinney, 11, Chairperson;
Cavanaugh, J., 9; Quick, 35; Rountree, 3.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to political subdivisions; to amend section
2 71-1575, Reissue Revised Statutes of Nebraska, and sections 14-102,
3 71-1572, and 71-15,169, Revised Statutes Cumulative Supplement,
4 2024; to provide powers to cities of the metropolitan class to
5 regulate housing authorities by ordinance; to define terms; to
6 change provisions relating to a complaint process, provide duties
7 for certain housing agencies relating to bed bugs, and require a
8 report under the Nebraska Housing Agency Act; to harmonize
9 provisions; and to repeal the original sections.
10 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 14-102, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 14-102 In addition to the powers granted in section 14-101, cities
4 of the metropolitan class shall have power by ordinance:

5 (1) To levy any tax or special assessment authorized by law;

6 (2) To provide a corporate seal for the use of the city, and also
7 any official seal for the use of any officer, board, or agent of the
8 city, whose duties require an official seal to be used. Such corporate
9 seal shall be used in the execution of municipal bonds, warrants,
10 conveyances, and other instruments and proceedings as required by law;

11 (3) To provide all needful rules and regulations for the protection
12 and preservation of health within the city, including providing for the
13 enforcement of the use of water from public water supplies when the use
14 of water from other sources shall be deemed unsafe;

15 (4) To appropriate money and provide for the payment of debts and
16 expenses of the city;

17 (5) To adopt all such measures as may be deemed necessary for the
18 accommodation and protection of strangers and the traveling public in
19 person and property;

20 (6) To punish and prevent the discharge of firearms, fireworks, or
21 explosives of any description within the city, other than the discharge
22 of firearms at a shooting range pursuant to the Nebraska Shooting Range
23 Protection Act;

24 (7) To regulate the inspection and sale of meats, flour, poultry,
25 fish, milk, vegetables, and all other provisions or articles of food
26 exposed or offered for sale in the city;

27 (8) To require all elected or appointed officers to give bond and
28 security for the faithful performance of their duties, except that no
29 officer shall become bonded and secured upon the official bond of another
30 or upon any bond executed to the city;

31 (9) To require from any officer of the city at any time a report, in

1 detail, of the transactions of his or her office or any matter connected
2 with such office;

3 (10) To provide for the prevention of cruelty to children and
4 animals;

5 (11) To regulate, license, or prohibit the running at large of dogs
6 and other animals within the city as well as in areas within the
7 extraterritorial zoning jurisdiction of the city; to guard against
8 injuries or annoyance from such dogs and other animals; and to authorize
9 the destruction of such dogs and other animals when running at large
10 contrary to the provisions of any ordinance. Any licensing provision
11 shall comply with subsection (2) of section 54-603 for service animals;

12 (12) To provide for keeping sidewalks clean and free from
13 obstructions and accumulations; to provide for the assessment and
14 collection of taxes on real estate and for the sale and conveyance
15 thereof; and to pay the expenses of keeping the sidewalk adjacent to such
16 real estate clean and free from obstructions and accumulations as
17 provided by law;

18 (13) To provide for the planting and protection of shade or
19 ornamental and useful trees upon streets or boulevards; to assess the
20 cost of such trees to the extent of benefits upon the abutting property
21 as a special assessment; to provide for the protection of birds and
22 animals and their nests; to provide for the trimming of trees located
23 upon streets and boulevards or when the branches of trees overhang
24 streets and boulevards when in the judgment of the mayor and city council
25 such trimming is made necessary to properly light such street or
26 boulevard or to furnish proper police protection; and to assess the cost
27 of such trimming upon the abutting property as a special assessment;

28 (14) To provide for, regulate, and require the numbering or
29 renumbering of houses along public streets or avenues; and to care for
30 and control and to name and rename streets, avenues, parks, and squares
31 within the city;

1 (15) To require weeds and worthless vegetation growing upon any lot
2 or piece of ground within the city or its extraterritorial zoning
3 jurisdiction to be cut and destroyed so as to abate any nuisance
4 occasioned by such vegetation; to prohibit and control the throwing,
5 depositing, or accumulation of litter on any lot or piece of ground
6 within the city or its extraterritorial zoning jurisdiction; to require
7 the removal of such litter so as to abate any nuisance occasioned
8 thereby. If the owner fails to cut and destroy weeds and worthless
9 vegetation or remove litter, or both, after notice as required by
10 ordinance, the city may assess the cost of such destruction or removal
11 upon the lots or lands as a special assessment. The required notice may
12 be by publication in the official newspaper of the city and may be
13 directed in general terms to the owners of lots and lands affected
14 without naming such owners;

15 (16) To prohibit and regulate the running at large or the herding or
16 driving of domestic animals, such as hogs, cattle, horses, sheep, goats,
17 fowls, or animals of any kind or description within the corporate limits;
18 to provide for the impounding of all animals running at large, herded, or
19 driven contrary to such prohibition and regulations; and to provide for
20 the forfeiture and sale of animals impounded to pay the expense of taking
21 up, caring for, and selling such impounded animals, including the cost of
22 advertising and fees of officers;

23 (17) To regulate the transportation of articles through the streets
24 and to prevent injuries to the streets from overloaded vehicles;

25 (18) To prevent or regulate any amusement or practice having a
26 tendency to annoy persons passing in the streets or on the sidewalks; and
27 to regulate the use of vehicles propelled by steam, gas, electricity, or
28 other motive power, operated on the streets of the city;

29 (19) To regulate or prohibit the transportation and keeping of
30 gunpowder, oils, and other combustible and explosive articles;

31 (20) To regulate, license, or prohibit the sale of domestic animals

1 or of goods, wares, and merchandise at public auction on the streets,
2 alleys, highways, or any public ground within the city;

3 (21) To regulate and prevent the use of streets, sidewalks, and
4 public grounds for signs, posts, awnings, awning posts, scales, or other
5 like purposes; and to regulate and prohibit the exhibition or carrying or
6 conveying of banners, placards, advertisements, or the distribution or
7 posting of advertisements or handbills in the streets or public grounds
8 or upon the sidewalks;

9 (22) To provide for the punishment of persons disturbing the peace
10 by noise, intoxication, drunkenness, or fighting, or otherwise violating
11 the public peace by indecent or disorderly conduct or by lewd and
12 lascivious behavior;

13 (23) To provide for the punishment of vagrants, tramps, street
14 beggars, prostitutes, disturbers of the peace, pickpockets, gamblers,
15 burglars, thieves, persons who practice any game, trick, or device with
16 intent to swindle, and trespassers upon private property;

17 (24) To prohibit, restrain, and suppress houses of prostitution,
18 opium joints, gambling houses, prize fighting, dog fighting, cock
19 fighting, and other disorderly houses and practices, all games and
20 gambling, and all kinds of indecencies; to regulate and license or
21 prohibit the keeping and use of billiard tables, bowling alleys, shooting
22 galleries except as provided in the Nebraska Shooting Range Protection
23 Act, and other similar places of amusement; and to prohibit and suppress
24 all lotteries and gift enterprises of all kinds under whatsoever name
25 carried on, except that nothing in this subdivision shall be construed to
26 apply to bingo, lotteries, lotteries by the sale of pickle cards, or
27 raffles conducted in accordance with the Nebraska Bingo Act, the Nebraska
28 Lottery and Raffle Act, the Nebraska Pickle Card Lottery Act, the
29 Nebraska Small Lottery and Raffle Act, or the State Lottery Act;

30 (25) To make and enforce all police regulations for the good
31 government, general welfare, health, safety, and security of the city and

1 the citizens of the city in addition to the police powers expressly
2 granted by law; in the exercise of the police power, to pass all needful
3 and proper ordinances and impose fines, forfeitures, and penalties for
4 the violation of any ordinance; to provide for the recovery, collection,
5 and enforcement of such fines; and in default of payment to provide for
6 confinement in the city or county prison or other place of confinement as
7 may be provided by ordinance;

8 (26) To prevent immoderate driving on the street;

9 (27) To establish and maintain public libraries, art galleries, and
10 museums and to provide the necessary grounds or buildings for such
11 libraries, galleries, and museums; to purchase books, papers, maps,
12 manuscripts, works of art, and objects of natural or of scientific
13 curiosity and instruction for such libraries, galleries, and museums; to
14 receive donations and bequests of money or property for such libraries,
15 galleries, and museums in trust or otherwise; and to pass necessary
16 bylaws and regulations for the protection and government of such
17 libraries, art galleries, and museums;

18 (28) To erect, designate, establish, maintain, and regulate
19 hospitals, houses of correction, jails, station houses, fire engine
20 houses, asphalt repair plants, and other necessary buildings; to erect,
21 designate, establish, maintain, and regulate plants for the removal,
22 disposal, or recycling of garbage and refuse or to make contracts for
23 garbage and refuse removal, disposal, or recycling, or all of the same;
24 and to charge equitable fees for such removal, disposal, or recycling, or
25 all of the same, except as provided by law. The fees collected pursuant
26 to this subdivision shall be credited to a single fund to be used
27 exclusively by the city for the removal, disposal, or recycling of
28 garbage and refuse, or all of the same, including any costs incurred for
29 collecting the fee. Before any contract for such removal, disposal, or
30 recycling is let, the city council shall make specifications for such
31 contract, bids shall be advertised for as now provided by law, and the

1 contract shall be let to the lowest and best bidder, who shall furnish
2 bond to the city conditioned upon his or her carrying out the terms of
3 the contract, the bond to be approved by the city council. Nothing in
4 this section, and no contract or regulation made by the city council,
5 shall be so construed as to prohibit any person, firm, or corporation
6 engaged in any business in which garbage or refuse accumulates as a
7 byproduct from selling, recycling, or otherwise disposing of his, her, or
8 its garbage or refuse or hauling such garbage or refuse through the
9 streets and alleys under such uniform and reasonable regulations as the
10 city council may by ordinance prescribe for the removal and hauling of
11 garbage or refuse;

12 (29) To erect and establish market houses and market places and to
13 provide for the erection of all other useful and necessary buildings for
14 the use of the city and for the protection and safety of all property
15 owned by the city. Such market houses, market places, and buildings may
16 be located on any street, alley, or public ground or on land purchased
17 for such purpose;

18 (30) To prohibit the establishment of additional cemeteries within
19 the limits of the city; to regulate the registration of births and
20 deaths; to direct the keeping and returning of bills of mortality; and to
21 impose penalties on physicians, sextons, and others for any default in
22 the premises;

23 (31) To provide for the inspection of steam boilers, electric light
24 appliances, pipefittings, and plumbings; to regulate their erection and
25 construction; to appoint inspectors; and to declare their powers and
26 duties, except as otherwise provided by law;

27 (32) To enact a fire code and regulate the erection of all buildings
28 and other structures within the corporate limits; to provide for the
29 removal of any buildings or structures or additions to buildings or
30 structures erected contrary to such code or regulations and to provide
31 for the removal of dangerous buildings; but no such code or regulation

1 shall be suspended or modified by resolution, nor shall exceptions be
2 made by ordinance or resolution in favor of any person, firm, or
3 corporation or concerning any particular lot or building; to direct that
4 when any building has been damaged by fire, decay, or otherwise, to the
5 extent of fifty percent of the value of a similar new building above the
6 foundation, shall be torn down or removed; to prescribe the manner of
7 ascertaining such damages and to assess the cost of removal of any
8 building erected or existing contrary to such code or regulations against
9 the lot or real estate upon which such building or structure is located
10 or shall be erected or to collect such costs from the owner of any such
11 building or structure; and to enforce the collection of such costs by
12 civil action in any court of competent jurisdiction;

13 (33) To regulate the construction, use, and maintenance of party
14 walls, to prescribe and regulate the thickness, strength, and manner of
15 constructing stone, brick, wood, or other buildings and the size and
16 shape of brick and other material placed in such buildings; to prescribe
17 and regulate the construction and arrangement of fire escapes and the
18 placing of iron and metallic shutters and doors in or on such fire
19 escapes; to provide for the inspection of elevators; to prescribe,
20 regulate, and provide for the inspection of all plumbing, pipefitting, or
21 sewer connections in all houses or buildings now or hereafter erected; to
22 regulate the size, number, and manner of construction of halls, doors,
23 stairways, seats, aisles, and passageways of theaters and buildings of a
24 public character, whether now built or hereafter to be built, so that
25 there may be convenient, safe, and speedy exit in case of fire; to
26 prevent the dangerous construction and condition of chimneys, fireplaces,
27 hearths, stoves, stovepipes, ovens, boilers, and heating appliances used
28 in or about any building and to cause such appliances to be removed or
29 placed in safe condition when they are considered dangerous; to prevent
30 the deposit of ashes in unsafe places and to cause such buildings and
31 enclosures as may be in a dangerous state to be put in a safe condition;

1 to prevent the disposing of and delivery or use in any building or other
2 structure of unsuitable building material within the city limits and
3 provide for the inspection of building materials; to provide for the
4 abatement of dense volumes of smoke; to regulate the construction of
5 areaways, stairways, and vaults and to regulate partition fences; and to
6 enforce proper heating and ventilation of buildings used for schools or
7 other buildings where large numbers of persons are liable to congregate;

8 (34) To regulate levees, depots and depot grounds, and places for
9 storing freight and goods and to provide for and regulate the laying of
10 tracks and the passage of railways through the streets, alleys, and
11 public grounds of the city;

12 (35) To require the lighting of any railway within the city and to
13 fix and determine the number, size, and style of all fixtures and
14 apparatus necessary for such lighting and the points of location for such
15 lampposts. If any company owning or operating such railways shall fail to
16 comply with such requirements, the city council may cause such lighting
17 to be done and may assess the expense of such lighting against such
18 company. Such expense shall constitute a lien upon any real estate
19 belonging to such company and lying within such city and may be collected
20 in the same manner as taxes for general purposes;

21 (36) To provide for necessary publicity and to appropriate money for
22 the purpose of advertising the resources and advantages of the city;

23 (37) To erect, establish, and maintain offstreet parking areas on
24 publicly owned property located beneath any elevated segment of the
25 National System of Interstate and Defense Highways or portion thereof, or
26 public property title to which is in the city on May 12, 1971, or
27 property owned by the city and used in conjunction with and incidental to
28 city-operated facilities; and to regulate parking on such property by
29 time limitation devices or by lease;

30 (38) To acquire, by the exercise of the power of eminent domain or
31 otherwise, lease, purchase, construct, own, maintain, operate, or

1 contract for the operation of public passenger transportation systems,
2 excluding taxicabs, transportation network companies and railroad
3 systems, including all property and facilities required for such public
4 passenger transportation systems, within and without the limits of the
5 city; to redeem such property from prior encumbrance in order to protect
6 or preserve the interest of the city in such property; to exercise all
7 powers granted by the Constitution of Nebraska and laws of the State of
8 Nebraska or exercised by or pursuant to a home rule charter adopted
9 pursuant thereto, including, but not limited to, receiving and accepting
10 from the government of the United States or any agency thereof, from the
11 State of Nebraska or any subdivision thereof, and from any person or
12 corporation donations, devises, gifts, bequests, loans, or grants for or
13 in aid of the acquisition, operation, and maintenance of such public
14 passenger transportation systems; to administer, hold, use, and apply
15 such donations, devises, gifts, bequests, loans, or grants for the
16 purposes for which such donations, devises, gifts, bequests, loans, or
17 grants may have been made; to negotiate with employees and enter into
18 contracts of employment; to employ by contract or otherwise individuals
19 singularly or collectively; to enter into agreements authorized under the
20 Interlocal Cooperation Act or the Joint Public Agency Act; to contract
21 with an operating and management company for the purpose of operating,
22 servicing, and maintaining any public passenger transportation systems
23 the city shall acquire; and to exercise such other and further powers as
24 may be necessary, incident, or appropriate to the powers of the city; and
25 (39) In addition to powers conferred elsewhere in the laws of the
26 state, to implement and enforce an air pollution control program within
27 the corporate limits of the city under subdivision (23) of section
28 81-1504 or subsection (1) of section 81-1528, which program shall be
29 consistent with the federal Clean Air Act, as amended, 42 U.S.C. 7401 et
30 seq. Such powers shall include without limitation those involving
31 injunctive relief, civil penalties, criminal fines, and burden of proof.

1 Nothing in this section shall preclude the control of air pollution by
2 resolution, ordinance, or regulation not in actual conflict with state
3 air pollution control regulations; and -

4 (40) To require any housing authority in a city of the metropolitan
5 class to comply with any city rental inspection and registration
6 ordinance, code enforcement, and inspection of residential rental
7 properties.

8 **Sec. 2.** Section 71-1572, Revised Statutes Cumulative Supplement,
9 2024, is amended to read:

10 71-1572 Sections 71-1572 to 71-15,170 and sections 5 and 6 of this
11 act shall be known and may be cited as the Nebraska Housing Agency Act.

12 **Sec. 3.** Section 71-1575, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 71-1575 For purposes of the Nebraska Housing Agency Act:

15 (1) Affiliate means any corporation, entity, partnership, venture,
16 syndicate, or arrangement in which a local housing agency participates by
17 holding an ownership interest or participating in its governance,
18 including both controlled and noncontrolled affiliates;

19 (2) Affordable housing means dwelling units that may be rented or
20 purchased, as the case may be, by persons of eligible income and
21 qualifying tenants, with or without government assistance;

22 (3) Agreement means a contract or other legal relations with another
23 party, whether public or private;

24 (4) Area of operation means the geographical area within which a
25 local housing agency may own or operate housing developments as described
26 in section 71-1588;

27 (5) Bed bug means a member of the Cimicidae family of parasitic
28 insects;

29 (6) {5} City means an incorporated city or village;

30 (7) {6} Commissioner means a person serving on the governing board
31 of a local housing agency, including any person identified under prior

1 law as a member of a housing authority;

2 (8) ~~(7)~~ Community facilities means real and personal property
3 suitable for recreational, educational, health, or welfare purposes,
4 including, but not limited to, buildings, equipment, and parks and other
5 spaces or structures;

6 (9) ~~(8)~~ Controlled affiliate means any affiliate of a local housing
7 agency (a) in which commissioners, officers, employees, and agents of
8 such agency constitute a majority of the governing body of such entity or
9 (b) in which such agency holds a majority of the ownership interests;

10 (10) ~~(9)~~ Development or housing development means and includes all
11 dwellings and associated appurtenances, including real and personal
12 property, and all other facilities and improvements of every kind and
13 description which a local housing agency may own or operate or in which
14 it may hold an interest under the provisions of the act; all land upon
15 which such dwellings, appurtenances, and facilities are situated; all
16 work and activities undertaken by a local housing agency or others
17 relating to the creation of such property and all tangible and intangible
18 personal property relating thereto, including all leases, licenses,
19 agreements, and other instruments; and all rights and obligations arising
20 thereunder establishing or confirming ownership, title, or right of use
21 or possession in or to any such property by a local housing agency;

22 (11) ~~(10)~~ Establishing a housing agency means taking all actions
23 required under sections 71-1576 to 71-1587 to be taken by the governing
24 body of a city or county or, in the case of a regional housing agency, by
25 the governing bodies of all political subdivisions participating therein,
26 for a housing agency to conduct business and to exercise its powers. In
27 the case of a housing agency or housing authority existing on January 1,
28 2000, established means that such agency has been authorized to conduct
29 business and exercise its powers in accordance with prior law;

30 (12) ~~(11)~~ Family means a single person or a number of persons that
31 may, but need not, include children, that a local housing agency accepts

1 for occupancy of a dwelling, or to which such agency offers or provides
2 other assistance, as particularly defined in the eligibility and
3 occupancy standards adopted by the agency;

4 (13) ~~(12)~~ Guest means any person, not a resident of such
5 development, who is present within a development, or any person, not a
6 resident in such dwelling, who is present within a dwelling in a
7 development, as an invitee of or otherwise with the acquiescence or
8 consent of a resident of such development or dwelling, as the case may
9 be;

10 (14) ~~(13)~~ Hold an interest means ownership, control of, or
11 participation in an arrangement with respect to a development by a local
12 housing agency or any affiliate thereof;

13 (15) ~~(14)~~ Household means a family as defined in subdivision (12)
14 ~~(11)~~ of this section;

15 (16) ~~(15)~~ Housing agency or agency means and includes both a local
16 housing agency established pursuant to sections 71-1576 to 71-1580 and a
17 regional housing agency established pursuant to sections 71-1581 to
18 71-1587. Reference in any prior or other law to housing authority is
19 deemed to refer to housing agency. Wherever the context requires or
20 permits, housing agency or agency includes controlled affiliates of a
21 housing agency;

22 (17) ~~(16)~~ Local housing agency or agency means a public body,
23 corporate and politic, previously established or to be established by a
24 city or a county pursuant to the authority provided in the act,
25 exercising necessary and essential governmental functions for the
26 purposes stated in the act in matters of statewide concern, although its
27 operations are local in nature. A local housing agency shall be a
28 political subdivision of this state, independent from the city or county
29 which established or establishes it or which may appoint some or all of
30 its commissioners. Any reference in the act to a local housing agency
31 includes a housing agency or a regional housing agency, unless the

1 context clearly otherwise requires. The term local housing agency also
2 includes any housing authority established under prior law;

3 ~~(18)~~ ~~(17)~~ Mixed-finance development means a development that is
4 financed both by funding derived from the private sector and funding
5 provided by the government that is permitted to be used for the
6 development of affordable housing;

7 ~~(19)~~ ~~(18)~~ Mixed-income development means a housing development
8 intended to be, and which in fact is, occupied both by persons of
9 eligible income and by other persons, and if such other persons are
10 living in a development constructed or acquired and substantially
11 occupied after January 1, 2000, the incomes of such other persons at
12 initial occupancy shall not exceed one hundred percent of the median
13 income in the county in which the development is located;

14 ~~(20)~~ ~~(19)~~ Noncontrolled affiliate means an affiliate in which a
15 local housing agency participates that is not a controlled affiliate;

16 ~~(21)~~ ~~(20)~~ Person includes a family;

17 ~~(22)~~ Pest control professional means a person licensed as a
18 commercial applicator under the Pesticide Act;

19 ~~(23)~~ ~~(21)~~ Persons of eligible income means:

20 (a) With respect to state or federally funded activities or
21 developments, individuals or families who meet the applicable income
22 requirements of the state or federal program involved, if any such state
23 or federal income requirements are applicable, and, if none are so
24 applicable, then individuals or families who meet the requirements of
25 subdivision (b) of this subdivision; and

26 (b) With respect to activities and developments other than those to
27 which subdivision (a) of this subdivision is applicable, individuals or
28 families who, in the determination of the local housing agency, lack
29 sufficient income or assets, taking into account all resources available
30 to such individuals or families from whatever source derived or
31 reasonably derivable, to enable them, without undue hardship or

1 governmental financial assistance, to purchase or rent, as the case may
2 be, decent, safe, and sanitary dwellings of adequate size, except that
3 the income of such families shall not exceed eighty percent of the area
4 median income for families of like size;

5 (24) ~~(22)~~ Public agency means and includes any: (a) County, city,
6 village, or township; school, drainage, tax, improvement, or other
7 district; local housing agency; department, division, or political
8 subdivision of this state or another state; housing agency, housing
9 finance agency, or housing trust of this state or another state; and
10 other agency, bureau, office, authority, or instrumentality of this state
11 or another state; (b) board, agency, commission, division, or other
12 instrumentality of a city or county; and (c) board, commission, agency,
13 department, or other instrumentality of the United States, or any
14 political subdivision or governmental unit thereof;

15 (25) ~~(23)~~ Qualifying tenants means persons described in subdivision
16 (23)(b) ~~(21)(b)~~ of this section and individuals and families whose income
17 does not exceed one hundred twenty-five percent of the maximum income
18 standard applicable under subdivision (23)(b) ~~(21)(b)~~ of this section;

19 (26) ~~(24)~~ Regional housing agency means a public body, corporate and
20 politic, and a governmental subdivision of this state, formed by two or
21 more cities, two or more counties, or a combination of cities and
22 counties, pursuant to the authority provided in sections 71-1581 to
23 71-1587, exercising necessary and essential governmental functions for
24 the purposes stated in the act in matters of statewide concern, although
25 its operations are local or regional in nature. It is a political
26 subdivision of this state, independent from political subdivisions of
27 this state which established it or which may appoint some or all of its
28 commissioners;

29 (27) ~~(25)~~ Representative means a commissioner, officer, employee, or
30 agent of a local housing agency; and

31 (28) ~~(26)~~ Resident means a person residing in a development of a

1 housing agency pursuant to an agreement with such agency.

2 **Sec. 4.** Section 71-15,169, Revised Statutes Cumulative Supplement,
3 2024, is amended to read:

4 71-15,169 (1) A housing agency for a city of the metropolitan class
5 shall establish a complaint process. Any resident of an agency property
6 may file a complaint by any of the following means:

7 (a) A complaint form filled out online on the housing agency's
8 website;

9 (b) A telephone call made to a housing agency; or

10 (c) A complaint form filled out in person. Such complaint form shall
11 be made available at designated offices.

12 (2) The complaint form, whether completed by the complainant online,
13 in-person, or by a housing agency employee answering a telephone call
14 complaint, shall include the following information:

15 (a) The name of the complainant;

16 (b) Contact information including the telephone number, email
17 address, and mailing address of the complainant;

18 (c) The nature of the complaint, including, but not limited to,
19 whether a maintenance issue, a discrimination claim, or a rent dispute;
20 and

21 (d) Relevant dates.

22 (3) Notice of the right to file a complaint up until the time of an
23 eviction shall be included on both the online and printed complaint form.

24 (4) The complainant may provide any supporting documentation with
25 the complaint, including, but not limited to, photographs or digital
26 images, receipts, and correspondence.

27 (5) Upon receipt of the complaint, the agency shall send an
28 acknowledgment to the complainant by email or regular first-class mail
29 within five business days. Each complaint shall be assigned a unique case
30 number for tracking purposes.

31 (6)(a) ~~{6}~~ The agency shall conduct a thorough investigation of the

1 complaint, including, but not limited to, interviewing relevant parties,
2 inspecting property and relevant documents, and reviewing applicable laws
3 and regulations.

4 (b) Throughout the investigation, the agency shall provide the
5 complainant with regular updates on the status of the complaint by email,
6 telephone, or regular first-class mail.

7 (c) The agency shall provide tenants with reasonable notice in
8 advance of entering a dwelling unit for purposes of investigating
9 complaints, including for inspection, bed bug remediation, or monitoring
10 in connection with a bed bug complaint.

11 (7)(a) For any complaint involving an actual or suspected bed bug
12 infestation:

13 (i) The agency shall perform an inspection or obtain investigatory
14 services from a pest control professional within ten days after receiving
15 the complaint. The inspection or investigatory services shall include any
16 unit directly adjacent to, above, or below the dwelling unit or common
17 area from which the original complaint came; and

18 (ii) Upon a determination of a bed bug infestation, the agency
19 shall:

20 (A) Provide all tenants of units affected by the complaint with
21 notice of the agency's or pest control professional's determination in
22 connection with such unit within ten days after such determination is
23 made;

24 (B) Obtain and provide remedial services from a pest control
25 professional within twenty-one days after receipt of the complaint; and

26 (C) Maintain a written record of the complaint and any control
27 measures provided, including any report of chemicals applied and other
28 remedies provided by the pest control professional. Such records shall be
29 maintained for two years.

30 (b) For all other complaints:

31 (i) ~~(7)~~ The agency housing authority shall resolve the complaint

1 within fourteen days after receipt of the complaint. If additional time
2 is required, the complainant shall be notified and provided with an
3 updated timeline; and ~~Throughout the investigation, the agency shall~~
4 ~~provide the complainant with regular updates on the status of the~~
5 ~~complaint by email, telephone, or regular first-class mail.~~

6 (ii) ~~(8)~~ The agency shall notify the complainant of the resolution
7 of the complaint in writing within five business days after such
8 resolution. The notice shall include (A) ~~(a)~~ a summary of the
9 investigation findings, (B) ~~(b)~~ the action taken to address the
10 complaint, (C) ~~(c)~~ any remedies or compensation provided, (D) ~~(d)~~
11 information on how to file a complaint with the political subdivision
12 responsible for code enforcement, if applicable, and (E) ~~(e)~~ information
13 about the city's complaint process if the complainant is not satisfied
14 with the resolution of the complaint.

15 (8) A complainant who is dissatisfied with the resolution of his or
16 her complaint may bring an action against the agency under the terms of
17 his or her lease agreement.

18 (9) The agency shall invite the complainant to provide feedback on
19 the complainant's experience with the complaint process, including
20 suggestions for improvement.

21 (10) The agency shall monitor complaint trends, analyze root causes,
22 and report on complaint resolution statistics regularly to identify areas
23 for improvement. The agency shall submit a report to the commissioners at
24 every board meeting detailing (a) the number of complaints filed, (b) the
25 nature of such complaints, (c) the status of completed and pending
26 inspections, and (d) the number of unfilled inspector positions within
27 the housing agency. The report shall also be made available to the public
28 on the agency's website and at the agency's office.

29 (11) The agency shall inform persons applying for housing about the
30 complaint process during the resident application process and inform
31 residents about the complaint process (a) annually, (b) at the time a

1 complaint is filed, and (c) by posting on the agency's website and on any
2 public boards in any common housing spaces.

3 **Sec. 5.** A housing agency for a city of the metropolitan class shall
4 have the following responsibilities relating to bed bugs:

5 (1) Prior to renting a dwelling unit, the agency shall visually
6 inspect the unit for any evidence of the presence of bed bugs, which may
7 be indicated by observation of a living bed bug, a bed bug carapace, eggs
8 or egg casings, or brownish or blood spotting on linens, mattresses, or
9 furniture;

10 (2) The agency shall not show, rent, or lease to a prospective
11 tenant any vacant dwelling unit that the agency knows or reasonably
12 suspects has a current bed bug infestation;

13 (3) Prior to renting a dwelling unit, the agency shall disclose to a
14 prospective tenant if an adjacent unit or units are currently infested
15 with or are being treated for bed bugs; and

16 (4) The agency shall be responsible for the costs of investigating
17 and remediating any bed bug infestation.

18 **Sec. 6.** A housing agency for a city of the metropolitan class shall
19 submit a report every six months to such city of the metropolitan class
20 and to the Urban Affairs Committee of the Legislature. The report shall
21 include:

22 (1) Information regarding any pest control management activities
23 undertaken during the six-month period covered by the report;

24 (2) The number of eviction filings during the six-month period
25 covered by the report;

26 (3) The number and nature of complaints or grievances filed during
27 the six-month period covered by the report and their resolutions;

28 (4) Current vacancy rates; and

29 (5) Any relevant updates from meetings of the agency's board of
30 commissioners.

31 **Sec. 7.** Original section 71-1575, Reissue Revised Statutes of

- 1 Nebraska, and sections 14-102, 71-1572, and 71-15,169, Revised Statutes
- 2 Cumulative Supplement, 2024, are repealed.